

Smt. Roop Kanti Tripathi v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 24 February 2023 · Writ - C No. 6399 of 2023 · **Disposed after the department withdrew the recovery certificate, with liberty to pass a fresh order after hearing under the Supply Code.**

HEADNOTE

Writ against a recovery certificate for electricity-theft dues disposed of after the electricity department stated that the certificate dated 10.10.2022 stood withdrawn and that a fresh order would be passed after hearing. Liberty was reserved to pass that order strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005. The theft allegation and the dues were not decided.

FACTUAL SUMMARY

Smt. Roop Kanti Tripathi filed a writ petition in the Allahabad High Court challenging the recovery certificate dated 10 October 2022 issued by respondent no. 2 for electricity dues in a case of theft of electricity. The State of U.P. and three others were the respondents. Counsel for the electricity department stated, on instruction, that the impugned recovery had been withdrawn and that a fresh order would be passed after the petitioner was given an opportunity of hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

Fresh order after withdrawal of a theft-dues recovery certificate

HOLDING

Where the electricity department withdraws the impugned recovery certificate for alleged theft dues and undertakes to pass a fresh order after hearing, the writ is disposed of with liberty to the respondents to pass that order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

¶ 1

FLAG The order invokes the U.P. Electricity Supply Code, 2005 without naming a clause.

PRINCIPLE TAGS

fresh-order-strictly-under-supply-code-procedure The writ was disposed once the department withdrew the 10.10.2022 recovery certificate and undertook a post-hearing fresh order, with liberty confined to the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD COMMITTED THEFT OF ELECTRICITY AND WHAT SUM, IF ANY, WAS RECOVERABLE

Left to the fresh departmental order after hearing. The Court did not examine the withdrawn certificate on merits. ¶ 1